



DEPARTMENT OF THE NAVY
NAVAL SEA SYSTEMS COMMAND
1333 ISAAC HULL AVE SE
WASHINGTON NAVY YARD DC 20376-0001

IN REPLY REFER TO
CJ&A No.: 22,034
Code: SEA 02214
PR Number: N00024-24-NR-68001

CLASS JUSTIFICATION AND APPROVAL
FOR USE OF OTHER THAN FULL AND OPEN COMPETITION

JUSTIFICATION

1. Contracting Activity

The Naval Sea Systems Command, Shipbuilding Contracts Division (SEA 022).

2. Description of the Action Being Approved

This Class Justification and Approval (CJ&A) is for the award of sole source contract actions to Huntington Ingalls Industries - Newport News Shipbuilding (HII-NNS) for the Advance Planning and Accomplishment of the USS NIMITZ (CVN 68) and USS DWIGHT D. EISENHOWER (CVN 69) Inactivation, Defueling, and Towing to disposal site.

These efforts will begin in [REDACTED] and continue through [REDACTED] as follows (month/year):

VESSEL	Advance Planning Start Date	Advance Planning Completion Date / Accomplishment Inactivation & Defueling Start Date	Inactivation & Defueling Completion Date
CVN 68	[REDACTED]	[REDACTED]	[REDACTED]
CVN 69	[REDACTED]	[REDACTED]	[REDACTED]

Authority to execute contracting actions under this CJ&A expires in [REDACTED], or the month in which CVN 69 Inactivation completes, whichever is later.

3. Description of Supplies and Services

The proposed contract actions will include support for the Advanced Planning and Accomplishment efforts. Advanced Planning includes documentation, engineering, material procurement, shipchecks, personnel training, and shipyard work necessary to prepare, make ready for and to accomplish the inactivation, defueling, and tow preparation of these NIMITZ CLASS carriers. Advanced Planning also includes the disposal of defueling equipment no longer required for future use after each inactivation. The Accomplishment contract actions will include a completion effort for nuclear and non-nuclear inactivation, defueling, and tow preparations to the disposal site.

The total estimated cost for the USS NIMITZ (CVN 68) and USS DWIGHT D. EISENHOWER (CVN 69) Advanced Planning and Accomplishment efforts is [REDACTED] (constant year dollars) of the 2B2G Operations and Maintenance, Navy (O&MN) funding ([REDACTED] - [REDACTED]). The Government's minimum needs have been verified by certifying technical and requirements personnel.

SHIP	ACTIVITY	PoP	*[REDACTED] TOTAL
CVN 68	AP	[REDACTED]	[REDACTED]
	Execution	[REDACTED]	[REDACTED]
TOTAL			[REDACTED]
CVN 69	AP	[REDACTED]	[REDACTED]
	Execution	[REDACTED]	[REDACTED]
TOTAL			[REDACTED]

*Funding (\$M) in [REDACTED] constant year dollars of the 2B2G Operations and Maintenance, Navy (O&MN)

4. Statutory Authority Permitting Other Than Full and Open Competition

10 U.S.C. 3204(a)(1), only one responsible source and no other supplies or services will satisfy agency requirements.

5. Rationale Justifying Use of Cited Statutory Authority

HII-NNS is the only responsible source capable of satisfying agency requirements for the Advanced Planning and Accomplishment of the USS NIMITZ (CVN 68) and USS DWIGHT D. EISENHOWER (CVN 69) Inactivation. The Advanced Planning and Accomplishment of the Inactivation and Defueling of a nuclear-powered aircraft carrier is an extremely complex, highly technical, and very specialized effort. HII-NNS is the original building yard contractor for all ships of the CVN 68 Class, as well as the only reactor plant planning yard and public or private shipyard capable of defueling a nuclear-powered aircraft carrier. HII-NNS maintains a repository of as-built data for all aircraft carriers and a staff of highly trained personnel with extensive specialized experience in the engineering support and maintenance of nuclear-powered aircraft carriers. Therefore, HII-NNS is the only source with the knowledge, experience, and nuclear handling facilities required to accomplish the USS NIMITZ (CVN 68) and USS DWIGHT D. EISENHOWER (CVN 69) Advanced Planning and Inactivation without an unacceptable disruption of Navy-wide budgets.

HII-NNS is the only shipyard, both public and private, with the facilities, dry-dock, requisite workforce, and licensing necessary to defuel a nuclear-powered aircraft carrier. In order for a private shipyard to attain the equivalent necessary facilities, dry-dock, and nuclear handling workforce, an investment of approximately [REDACTED] would be required.

HII-NNS completed the design and construction of ten (10) NIMITZ Class nuclear-powered aircraft carriers and has performed the reactor plant planning yard and lead design refueling yard efforts for the NIMITZ Class since the mid-1960's. Additionally, HII-NNS completed the defueling of the Ex-USS ENTERPRISE (CVN 65). Therefore, the Government determined an alternative source strategy to be unacceptable due to the aforementioned increased risk to cost. Accordingly, HII-NNS is the only responsible source able to satisfy the Government's requirements.

6. Description of Efforts Made to Solicit Offers from as many Offerors as Practicable

In accordance with Federal Acquisition Regulation (FAR) 5.201, these requirements were synopsized on the System for Award Management (SAM.gov) website on 06 Apr 2023 and 13 Sep 2023 for [REDACTED]

the CVN 68 and CVN 69 Advanced Planning and Accomplishment contract actions, respectively. To date, no responses have been received and no responses are anticipated. A Sources Sought Waiver was approved by the Director, Shipbuilding Contracts Division and no additional market research has been conducted because it was not practical, for the reasons discussed in paragraph 5 above, for any company other than HII-NNS to perform the contemplated efforts.

7. Determination of Fair and Reasonable Costs

The Contracting Officer has determined that the anticipated cost to the Government for the supplies/services covered by this CJ&A will be fair and reasonable.

8. Actions to Remove Barriers to Competition

For the reasons set forth in Paragraph 5, NAVSEA has no plans at this time to compete future contracts for the types of supplies covered by this document. If another potential source emerges, NAVSEA will assess whether competition for future requirements is feasible.

CERTIFICATIONS AND APPROVAL

TECHNICAL/REQUIREMENTS CERTIFICATION

I certify that the facts and representation under my cognizance, which are included in this justification and its supporting acquisition planning data, including NAVSEA Acquisition Plan No. 368-24-001, except as noted herein, are complete and accurate to the best of my knowledge and belief.

TECHNICAL COGNIZANCE:

[REDACTED]

REQUIREMENTS COGNIZANCE:

[REDACTED]

LEGAL SUFFICIENCY REVIEW:

I have determined this justification is legally sufficient.

[REDACTED]

CONTRACTING OFFICER CERTIFICATION:

I certify that this justification is accurate and complete to the best of my knowledge and belief.

[REDACTED]

SENIOR PROCUREMENT EXECUTIVE APPROVAL

Upon the basis of the above justification, I hereby approve, as Senior Procurement Executive of the Navy, the solicitation of the proposed procurements described herein using other than full and open competition, pursuant to the authority of 10 U.S.C.

3204(a)(1).



OCT 20 2024

Nickolas H. Guertin

Assistant Secretary of the Navy
(Research, Development and Acquisition)

Date